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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. DIANA CANDELARIA, in her individual capacity, and STEVE GORDON, Director of the California DMV, in his official capacity, Defendants.	Case No. 2:26-cv-00983-DC-CSK **NOTICE OF SUPPLEMENTAL AUTHORITY** *(Plaintiff's Objections to F&R Pending)*

Plaintiff Brendan Ngehsi Newanforbi, proceeding pro se, respectfully files this Notice of Supplemental Authority to bring to the Court's attention a decision issued after the filing of Plaintiff's Objections to the Magistrate Judge's Findings and Recommendations that bears directly on the pending objections.

THE SUPPLEMENTAL AUTHORITY

On June 29, 2026, the Honorable Ajay S. Krishnan, United States Magistrate Judge for the Northern District of California, issued an Order Re Motion to Proceed In Forma Pauperis in *Newanforbi v. Serrato*, Case No. 4:26-cv-05953-ASK (N.D. Cal.) (the "Serrato Order"). A true and correct copy of the Serrato Order is attached hereto as Exhibit A.

In the Serrato Order, Judge Krishnan (1) granted Plaintiff's application to proceed in forma pauperis, (2) screened the complaint pursuant to 28 U.S.C. section 1915(e), and (3) concluded that the operative complaint "is sufficient" to proceed past the section 1915 screening stage. The Court ordered the Clerk to issue summons and directed service of process by the United States Marshal.

RELEVANCE TO THE PENDING OBJECTIONS

The Serrato Order is relevant to this Court's de novo review of the Findings and Recommendations for the following reasons:

First, the Serrato Order arises from the same November 1, 2024 incident that is the factual foundation of this action. Although the instant case challenges the constitutional architecture of the DMV administrative per se hearing rather than the CHP officers' roadside conduct, both cases depend on the same predicate: whether the November 1, 2024 arrest was lawful and whether the sworn CHP report was truthful. Judge Krishnan evaluated the dashcam contradictions, the fabrication allegations, and the Penal Code section 851.6 detention certificate -- the same documentary record on which this action's "lawful arrest" and jurisdictional arguments rest -- and found them sufficient.

Second, the Findings and Recommendations in this case expressly relied on the pendency of recommended dismissal in a companion case as additional support for denying leave to amend. See F&R at 9 (citing *Newanforbi v. California*, 2026 WL 1067541 (E.D. Cal. Apr. 20, 2026)). The Serrato Order materially undermines that cross-reference. A coordinate Article III court has now examined substantially overlapping factual allegations and concluded they state a sufficient claim. The inference that Plaintiff's litigation pattern reflects frivolousness rather than legitimate pursuit of distinct legal theories is no longer sustainable.

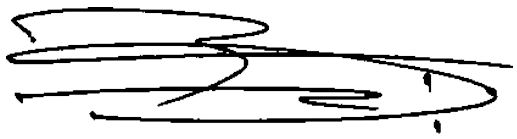
Third, the Serrato Order bears on the frivolousness determination underlying the denial of Plaintiff's in forma pauperis application. A claim has "an arguable basis . . . in law or in fact" within the meaning of *Neitzke v. Williams*, 490 U.S. 319, 325 (1989), when a coordinate federal court, presented with the same core allegations, finds them sufficient to survive section 1915 screening. The Findings and Recommendations' characterization of the First Amended Complaint as "frivolous or . . . without merit" cannot be reconciled with the Serrato Order's contrary conclusion.

Fourth, the Serrato Order is relevant to the "lawful arrest" predicate at issue in Objection II. If the November 1, 2024 arrest lacked a lawful basis -- as a coordinate federal court has now found plausible -- then the First Amended Complaint's allegation that Defendant Candelaria acted "in the complete absence of all jurisdiction" under *Mireles v. Waco*, 502 U.S. 9, 11-12 (1991), is at minimum non-frivolous and warrants development beyond screening.

Plaintiff does not contend that the Serrato Order is binding on this Court. Plaintiff respectfully submits, however, that a coordinate federal court's assessment of the same underlying factual record is persuasive authority that weighs against adoption of the Findings and Recommendations and supports the relief requested in Plaintiff's Objections.

Dated: July 7, 2026

Respectfully submitted,



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